Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N16

HON. Donald F. Gaffney

Counsel and Parties Please Note:
Law and Motion in Department N16 is heard on Wednesdays at 9:00 a.m.

Date: August 19, 2026

Tentative Rulings will be posted on the Internet on the day before the hearing by 5:00 p.m. [or earlier] whenever possible. To submit on the tentative ruling, please contact the clerk at (657) 622-5616, after contacting opposing party/counsel. Prevailing party shall give notice of the Ruling and prepare the Order/Judgment for the Court's signature if required.

NOTE: After posting of tentative rulings, the Court will not take the motion off calendar and will grant a continuance of the motion only upon stipulation of all affected parties.

If no appearances are made on the calendared motion date, then oral argument will be deemed to have been waived and the tentative ruling will become the Court's final ruling.

#	Case Name	Tentative
1	Nava vs. Ortscheid	**TENTATIVE RULING:** For the reasons set forth below, Defendant Robert Ortscheid's demurrer to Plaintiff Arturo Nava's Complaint is SUSTAINED. Plaintiff is granted 30 days leave to amend. **Statement of Law** A demurrer only tests the sufficiency of the pleadings. (*See Satyadi v. West Contra Costa Healthcare District* (2014) 232 Cal.App.4th 1022, 1028 [in analyzing a demurrer, the court looks only to the face of the pleadings and to matters judicially noticeable and not to the evidence or other extrinsic matters]). In reviewing the propriety of the sustaining of a demurrer, the "court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded. [Citations.] The court does not, however, assume the truth of contentions, deductions or conclusions of law. [Citation.] The judgment must be affirmed 'if any one of the several grounds of demurrer is well taken. [Citations.]' [Citation.] However, it is error for a trial court to sustain

a demurrer when the plaintiff has stated a cause of action under any possible legal theory. [Citation.] And it is an abuse of discretion to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment." (*Hale v. Sharp Healthcare* (2010) 183 Cal.App.4th 1373, 1379 [citing *Aubry v. Tri–City Hospital Dist*. (1992) 2 Cal.4th 962, 967].). A court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718 fn.7.)

Merits

Plaintiff filed a complaint on Judicial Council Form, Complaint PLD-PI-001, asserting one cause of action for motor vehicle under paragraph 10 of the form Complaint. However, there are no attachments, and there are no facts regarding the incident. (See Compl. [ROA 2]).

Defendant demurrers on the basis that Plaintiff failed to state any facts to constitute a cause of action for motor vehicle negligence and failed to include any attachments, and on the basis that the Complaint is uncertain.

Code Civ. Proc. § 425.10 provides as follows:

> (a) A complaint or cross-complaint shall contain both of the following:
>
> (1) A statement of the facts constituting the cause of action, in ordinary and concise language.
> …

As the court held in *People ex rel. Dept. of Transportation v. Superior Court* (1992) 5 Cal.App.4th 1480, 1486: "In some cases, merely checking a box on a Judicial Council form complaint will be sufficient. In other cases, such as this one, where specific allegations need be alleged, the form complaint is like a partially completed painting. It is up to the pleader to add the details that complete the picture. The form complaint here, standing alone, is no more immune to demurrer than any other complaint that fails to meet essential pleading requirements to state a cause of action."

Thus, "in order to be demurrer-proof, a form 'complaint must contain whatever *ultimate facts* are essential to state a cause of action under

		existing statutes or case law.'" (*Id.* at 1484 [emphasis in original, internal citations omitted]). Regarding uncertainty, the court will only sustain a demurrer for uncertainty if it is so poorly drafted that defendants cannot reasonably respond. (*Khoury v. Maly's of California Inc*. (1993) 14 Cal.App.4th 612, 616.). Here, Plaintiff failed to plead any facts supporting the cause of action for motor vehicle. In the Judicial Council Form Complaint, PLD-PI-001, paragraph 10 states: "The following causes of action are attached and the statements above apply to each (each complaint must have one or more causes of action attached)." Plaintiff did not provide any attachment and there are no other facts alleged in the complaint. Accordingly, Plaintiff failed to plead any ultimate facts in support of his claim. Furthermore, Plaintiff failed to oppose. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 ["Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue".]). Accordingly, the demurrer is sustained. Should Plaintiff desire to file an amended complaint, Plaintiff shall file and serve the amended complaint within 30 days of service of the notice of ruling. Defendant shall give notice.
2	Neumann vs. Mull	**TENTATIVE RULING:** Before the court are the following demurrers/motions: • Demurrer by Defendant JM Welding Products, LLC to the third amended complaint (the "LLC Defendant's Demurrer") • Demurrer by Defendants Andrew Burke, Thomas Bruno, Sara Abrams, and James Mull to the third amended complaint (the "Individual Defendants' Demurrer") • Motion to Strike by Defendant JM Welding Products, LLC to the third amended complaint (the "LLC Defendant's Motion to Strike") and

- Plaintiff's Omnibus Motion to Strike: (1) LLC's Motion to Strike, (2) LLC's Demurrer, and (3) Individual Defendants' Joint Demurrer

For the reasons set forth below:

Defendant JM Welding Products, LLC's demurrer to the third amended complaint by Plaintiff Richard Warren Neumann Jr., is OVERRULED;

Defendants Andrew Burke's, Thomas Bruno's, Sara Abrams', and James Mull's demurrer to the third amended complaint by Plaintiff Richard Warren Neumann Jr., is SUSTAINED with 30 days leave to amend;

Defendants Andrew Burke's, Thomas Bruno's, Sara Abrams', and James Mull's request for judicial notice is GRANTED as to Exhibits A-F;

Defendant JM Welding Products, LLC's motion to strike portions of the third amended complaint by Plaintiff Richard Warren Neumann Jr., is DENIED; and

Plaintiff's Omnibus Motion to Strike: (1) LLC's Motion to Strike, (2) LLC's Demurrer, and (3) Individual Defendants' Joint Demurrer is DENIED.

<u>LLC Defendant's and Individual Defendants' Demurrer</u>

A. Legal Standard for Demurrer

In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1404-1405.) Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) A demurrer tests only the sufficiency of the complaint; a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718 n.7.)

Although courts should take a liberal view of inartfully drawn complaints (*see* Code Civ. Prod., § 452), it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.) Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (*Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470, 481; *see* Code Civ. Proc., § 425.10, subd. (a).)

B. First Cause of Action for Breach of Contract

1. <u>LLC Defendant's Demurrer</u>

"To state a cause of action for breach of contract, it is required that there be a pleading of the contract, plaintiffs' performance (or excuse for nonperformance), defendant's breach, and damage to plaintiff therefrom." (*Gautier v. General Tel. Co.* (1965) 234 Cal.App.2d 302, 305.) Furthermore, in an action founded upon a contract, a party must be able to ascertain from the pleading whether the contract was written, oral, or implied by conduct. (Code Civ. Proc. § 430.10(g).)

The LLC Defendant demurs to the first cause of action on the grounds that Plaintiff references multiple contracts, such that Defendant does not know what contract was allegedly breached. As such, it cannot be ascertained whether the contract is written, oral, or implied by conduct.

The court disagrees. The first cause of action specifically identifies the contract that was allegedly breached as an oral contract between Plaintiff and the LLC Defendants. (TAC, ¶ 60 & 62). Plaintiff's references to the other agreements provide context to Plaintiff's claims and Plaintiff expressly alleges that those other agreements were either never executed, executed under fraud/duress, and/or are not enforceable and disavows any purported written agreement between the parties as forged/void. Here, Plaintiff has sufficiently alleged the ultimate facts for each cause of action for breach of contract against Defendants. (See *Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 606 ["A cardinal rule of pleading is that only the ultimate facts need be alleged."].) As such, the first cause of action is sufficiently pled.

The LLC Defendant's demurrer to the first cause of action is overruled.

2. <u>Individual Defendants' Demurrer</u>

The Individual Defendants also demurrer to the first cause of action due to lack of sufficient pleading.

		The court agrees with the Individual Defendants' arguments as it pertains to Defendant Sara Abrams, Tommy Bruno, and Andrew Burke. The TAC alleges that the oral agreement was entered in August 2020 with Defendant James Dean Mull, as sole owner of the LLC. (TAC, ¶ 11). The TAC specifically alleges that "Sara Abrams, Tommy Bruno, and Andrew Burke were not yet associated with the LLC…" and that the products designed "were sold by JM Welding Products," not by Abrams, Bruno, or Burke. (TAC, ¶ 11). The first cause of action only identifies, and seeks relief only for, the breach of this oral agreement. (TAC, ¶ 60). As such, the existence of any agreement with Abrams, Bruno, or Burke under which Plaintiff is asserting a breach of contract claim is uncertain. As to Defendant Mull, however, the court finds that the existence of an oral agreement between Mull is alleged and that a cause of action for breach of contract is sufficiently pled against Mull. The Individual Defendants also demur under section 474 on the grounds that Plaintiff was aware of the individual defendants' names before the complaint was filed in July 2023. As relevant here, Code Civ. Proc. § 474 provides: > When the plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint, or the affidavit if the action is commenced by affidavit, and such defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly; …. the copy of the first pleading or notice served upon such defendant bore on the face thereof a notice stating in substance: "To the person served: You are hereby served in the within action (or proceedings) as (or on behalf of) the person sued under the fictitious name of (designating it)." The certificate or affidavit of service must state the fictitious name under which such defendant was served and the fact that notice of identity was given by endorsement upon the document served as required by this section. … The court in *Woo* went on to state: > Among the requirements for application of the section 474 relation-back doctrine is that the new defendant in an amended complaint be substituted for an existing fictitious Doe

		defendant named in the original complaint. [citation] Here Zarabi made no apparent attempt to satisfy this procedural requirement. The amended complaint adds Woo as a defendant but does not identify him as a substitute for a previously named fictitious defendant. Furthermore, the summons served on Woo identifies him as being sued as an individual defendant, not as a defendant previously sued under a fictitious name. (*Woo, supra,* 75 Cal.App.4th at 176. [emphasis added]). The court also held: “A further and non-procedural requirement for application of the section 474 relation-back doctrine is that Zarabi must have been genuinely ignorant of Woo's identity at the time she filed her original complaint. …, if the identity ignorance requirement of section 474 is not met, a new defendant may not be added after the statute of limitations has expired even if the new defendant cannot establish prejudice resulting from the delay.” (*Id.* at 177). Pursuant to the holding in *Woo, supra*, the relation back doctrine would not apply here. In the first amended complaint, of which the court takes judicial notice, Plaintiff specifically alleges that Plaintiff knew of the involvement of Sara Abrams, Tommy Bruno, Andrew Burke, and James Mull between August 2020 and May 2021. (FAC, ¶ FAC-GAAE.13). When Plaintiff filed the third amended complaint, however, none of the individual defendants were named defendants, but were added in as Does under section 474. However, it cannot be said that Plaintiff was ignorant of the identities at the time that Plaintiff filed the complaint and any of the subsequent amended complaints. As such, there is no basis for the relation back doctrine to apply. Because Plaintiff does not sufficiently allege an agreement with Sara Abrams, Tommy Bruno, and Andrew Burke, and because Plaintiff does not sufficiently pled that the causes of action are not barred by the statute of limitations given that the relation back doctrine does not apply, as pled, and the third amended complaint was filed on December 29, 2025, the demurrer by the Individual Defendants is sustained with 30 days leave to amend. **C. Second Cause of Action for Fraud** **1. <u>LLC Defendant Demurrer</u>** "A complaint for fraud must allege the following elements: (1) a knowingly false representation by the defendant; (2) an intent to deceive or induce reliance; (3) justifiable reliance by the plaintiff; and (4) resulting damages. Every element must be specifically pleaded.

		[citations omitted]" (*Service by Medallion, Inc. v. Clorox Co.* (1996) 44 Cal.App.4th 1807, 1816.) "'Every element of the cause of action for fraud must be alleged in the proper manner and the facts constituting the fraud must be alleged with sufficient specificity to allow defendant to understand fully the nature of the charge made.'" (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73, quoting *Roberts v. Ball, Hunt, Hart, Brown & Baerwitz* (1976) 57 Cal.App.3d 104, 109.) "This particularity requirement necessitates pleading *facts* which 'show how, when, where, to whom, and by what means the representations were tendered.'" *Stansfield v. Starkey*, *supra*, 220 Cal.App.3d at p. 73, quoting *Hills Trans. Co. v. Southwest* (1968) 266 Cal.App.2d 702, 707.) The LLC Defendant argues that Plaintiff has not plead fraud with the requisite specificity. The court disagrees. The TAC specifically alleges that the LLC Defendant agreed in an oral agreement to give Plaintiff 25% ownership interest through its sole owner Mull in August 2020, that Plaintiff reasonably relied on that promise, and that Plaintiff was induced into providing services and labor to create a product with proprietary data that belonged to Plaintiff, that Defendant took that proprietary data, but never gave Plaintiff a 25% interest as promised. (TAC, ¶ 65-69). These allegations are specific and sufficient enough to put the LLC Defendant on notice of Plaintiff's fraud claims. The demurrer by the LLC Defendant is overruled as to the second cause of action. **2. <u>Individual Defendants' Demurrer</u>** For the same reasons set forth above (e.g., the failure to allege a sufficient agreement and statute of limitation issues due to section 474), the demurrer by the Individual Defendants to the second cause of action for fraud is sustained with 30 days leave to amend. **<u>LLC Defendant and Plaintiffs' Motions to Strike</u>** **A. Legal Standard for Motion to Strike** The grounds for a motion to strike must appear on the face of the pleading or matters from which the court may judicially notice. (Code Civ. Proc., § 437.) Pursuant to Code of Civil Procedure Section 436 the court may, upon a motion made or at any time in its discretion, strike out "any irrelevant, false, or improper matter inserted in any pleading."

In a motion to strike, the court reads the complaint as a whole, considering all parts in their context, and must assume the truth of all well-pleaded allegations. (*Courtesy Ambulance Serv. v. Superior Court* (1992) 8 Cal.App.4th 1504, 1519.)

B. LLC Defendant's Motion to Strike

The LLC Defendant first moves to strike exhibits that are not attached to the complaint. The LLC Defendant argues that these exhibits should be stricken because they are not properly authenticated. Exhibits to a complaint, however, provide context to allegations and are not, in and of themselves admissible. The court denies this request.

The LLC Defendant then moves to strike allegations relating to patent fraud and misappropriation of technology. While Plaintiff is not asserting a cause of action for patent fraud or misappropriation of technology, these allegations provide context as to the parties' relationship and Plaintiff's fraud claim. The court denies the motion to strike as to this request.

The LLC Defendant then moves to strike allegations relating to punitive damages. To plead a claim to recover punitive damages, a plaintiff must plead and show one of the following bases for imposition of exemplary damages, i.e. malice, oppression, or fraud. (Civ. Code, § 3294(a).) As the court found above, Plaintiff has sufficiently alleged a cause of action for fraud against the LLC Defendant such that punitive damages are available as a remedy. The court denies the motion as to this request.

Finally, the LLC Defendant moves to strike Plaintiff's request for a permanent injunction because the LLC Defendant believes that Plaintiff's fraud claim lacks merit. The merits of Plaintiff's claims, however, have not yet been adjudicated such that the type of relief Plaintiff is entitled to has not yet been adjudicated. A permanent injunction is an available remedy for breach of contract and/or fraud. The motion to strike as to this request is denied.

C. Plaintiff's Motions to Strike

Plaintiff moves to strike the LLC Defendant's Demurrer, the LLC Defendant's Motion to Strike, and the Individual Defendants' Joint Demurrer. The court does not find that these filings are irrelevant, false, or improper. The court does not agree that any of these filings are void, procedurally improper, untimely, or sham pleadings.

Plaintiff's motions to strike are denied.

		Defendants to give notice.
3	Youssef vs. BCKG Beach Properties, LLC	**TENTATIVE RULING:** **<u>Demurrer</u>** Defendant Chicago Title Insurance Company demurs to the Second Amended Complaint (SAC) of Plaintiff Adel I. Youssef. For the following reasons, the demurrer is OVERRULED. **<u>Standard on Demurrer</u>** In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1404-1405.) Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) A demurrer tests only the sufficiency of the complaint; a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718 n.7.) Although courts should take a liberal view of inartfully drawn complaints (*see* Code Civ. Proc., § 452), it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.) Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (*Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470, 481; *see* Code Civ. Proc., § 425.10(a).) **<u>Fourth Cause of Action (Negligence)</u>** The SAC pleads a single cause of action against Defendant Chicago Title. The fourth cause of action alleges Chicago Title breached its obligations as recording agent by failing to timely record a Deed of Trust securing a debt owed to Plaintiff Youssef. (SAC ¶¶ 19, 21, 78, 93.)

		The elements of a negligence claim are: (1) a duty on the part of defendant toward plaintiff; (2) defendant's breach of that duty; and (3) harm to plaintiff caused by the breach. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1142.) Absent duty, there is no liability, no matter how easily the injury might have been prevented. (*J.L. v. Children's Institute, Inc.* (2009) 177 Cal.App.4th 388, 396.) The court sustained with leave to amend Defendant Chicago Title's demurrer to the FAC, ruling that the FAC alleged no breach of duty as trustee, title insurer, or escrow agent. The SAC bases the negligence claim on Chicago Title's role as recording agent. The SAC alleges that on 10/21/2024, Defendant Quality Escrow engaged Defendant Chicago Title to act as recording agent for all documents, which included the Deed of Trust executed by Defendant BCKG (the "Youssef DOT"). (SAC ¶ 19.) Defendant Chicago Title undertook to record the closing documents as part of the escrow closing process. (SAC ¶ 79.) The SAC alleges Chicago Title breached its duty as the recording agent to exercise ordinary care by failing to timely and sufficiently record the Youssef DOT (*see* SAC ¶¶ 77-78), by delaying the recordation of the Youssef DOT, and recording the Grant Deed to subsequent purchaser Defendant PCH prior to recording the Youssef DOT. (*See* SAC ¶¶ 21, 25(c).) Specifically, the SAC alleges Defendant Chicago Title recorded the Grant Deed on 10/22/2024 but did not record the DOT until 30 days later, on 11/21/2024. (SAC ¶¶ 19, 21.) Where a plaintiff alleges tort claims against a contracting party and the claims arise from the parties' underlying contract, such claims are generally barred by the economic loss rule. (*See Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 923-824, citing among others *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 991 [holding lender did not have a duty to treat loan modification applications with due care].) A title company, however, is held to the standard of care for professionals within their area of expertise and may be liable for economic loss caused by their negligence. (*See, e.g., Seeley v. Seymour* (1987) 190 Cal.App.3d 844, 860.) More generally, a defendant may be held liable for economic harm inflicted upon a third party with whom the defendant has no direct dealing, if the balance of factors warrants the imposition of a duty to the third party. (*Seeley v. Seymore, supra,* 190 Cal.App.3d at p. 860 [citing others].) "Those factors are: '(1) the extent to which the transaction was intended to affect the plaintiff; (2) the foreseeability of harm to the plaintiff; (3) the degree of certainty that the plaintiff suffered injury;

		(4) the closeness of the connection between the defendant's conduct and the injury suffered; (5) the moral blame attached to the defendant's conduct; and (6) the policy of preventing future harm.' [Citation.]" (*Seeley v. Seymore, supra,* 190 Cal.App.3d at pp. 860-861.) In *Seeley v. Seymore*, the court concluded the title insurance company owed the plaintiff-lessor a duty of care, where the title company had recorded a void memorandum of lease. The court considered that: (1) the title company's recording of a purported memorandum of lease was substantially intended to affect the plaintiff-lessor, as that was the primary purpose; (2) there was a strong element of foreseeability that the lessor would suffer economic harm as a result of that recording; (3) the plaintiff did, in fact, suffer injury, as the recorded memorandum clouded title and compelled the lessor to incur attorney's fees to try to expunge the memorandum from the record; (4) the "closeness of the connection" between act and harm suffered is self-evident; and (5) while not morally repugnant, the title insurance company's conduct was deserving of moral blame because it violated its contract with the County Recorder and standard title company practices, which gave the document an aura of presumptive validity; and (6) title companies as institutions are charged with the public trust, so it is important they be held accountable when their negligent acts result in economic harm to individual property interests. (*Id.* at pp. 861-862.) Here, the economic loss rule does not bar this claim, as the SAC alleges facts showing an independent duty to Plaintiff-Seller, a party with which Defendant Chicago has no contractual privity. Like the situation in *Seeley v. Seymore,* the alleged facts here support imposing a duty of care by Defendant Chicago Title to Plaintiff Youssef. Specifically, the SAC alleges facts showing: (1) the deed of trust was intended to affect Plaintiff as lender; (2) there was significant foreseeability that Plaintiff-lender would suffer economic harm as a result of the delayed recording in a "first in time, first in right" system; (3) Plaintiff alleges he suffered injury, given the intervening recordation of a later-created lien that gained priority over Plaintiff's; (4) the "closeness of the connection" between Defendant Chicago's delayed recordation and the alleged harm suffered is self-evident; (5) while not morally repugnant, Chicago Title's conduct was deserving of some amount of moral blame, as considerable delays in recording instruments can affect the integrity of the "first in time, first in right" system; and (6) holding recording agents accountable when their negligent acts result in economic harm

		to individual property interests supports the integrity of the larger system. The SAC alleges facts to show breach of that duty of care (*see* SAC ¶¶ 19, 21) and damages therefrom (SAC ¶ 94). To the extent Defendant argues that the SAC does not adequately allege specific facts, the court finds that level of specificity is not required at this stage. A plaintiff need only plead such facts as are necessary "to acquaint a defendant with the nature, source and extent of his claims." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550; *Prue v. Brady Co./San Diego, Inc.* (2015) 242 Cal.App.4th 1367, 1376 ["a complaint is adequate so long as it apprises the defendant of the factual basis for the claim"].) On demurrer, the court "assume[s] the truth of all properly pleaded facts, as well as all facts that may be implied or reasonably inferred from those expressly alleged . . . ." (*Sonoma Luxury Resort LLC v. California Regional Water Quality Control Bd.* (2023) 96 Cal.App.5th 935, 940.) **<u>Special Demurer for Uncertainty</u>** "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal. App. 4th 612, 616.) A demurrer for uncertainty will be sustained only where the complaint is so poorly pled that a defendant cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) Defendant argues that Plaintiff appears to seek to name Chicago Title Company, not Defendant Chicago Title Insurance Company. Defendant's argument relies on facts outside the four corners of the pleading to argue there are two separate entities with similar names. Demurrer is not the proper vehicle to address this issue. The court encourages the parties to consider and resolve any issue of erroneously sued parties without further motion practice. No later than 30 days after service of the notice of ruling, Defendant Chicago Title shall file and serve an answer or other responsive pleading to the Complaint. (Cal. Rules Ct., Rule 3.1320(g).) Defendant to give notice.

4	Dilani vs. Guaranteed Property Inspections, LLC	**TENTATIVE RULING:** **<u>Motion to Compel Further Responses to RFPs</u>** Plaintiff Dorsaye Dilani moves to compel further responses from Defendant Joseph Gutierrez to RFPs (Set One). For the following reasons, the motion is DENIED. Code of Civil Procedure section 2031.310(c) provides that notice of a motion to compel further responses must be served within 45 days after service of a verified response, or "on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories." The 45-day deadline is mandatory and "jurisdictional," such that it renders the court with no authority to grant a late-filed motion. (*See Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.) Here, the court record shows this motion to be late-filed. Defendant served verified responses to RFPs (Set One) on 03/06/2026. (*See* ROA # 168 [Proof of Serv. of Discov. Resps.].) The deadline to file a motion to compel further responses fell on 04/27/2026. Plaintiff submits no evidence the parties agreed in writing to extend that deadline. Plaintiff filed this motion after the 45-day deadline passed, on 05/01/2026. Therefore, the court must DENY the motion. Clerk to give notice.
5	Dinh vs. The M General Construction Company	**TENTATIVE RULING:** **<u>Motion 1. Motion to Be Relieved as Counsel of Record</u>** Counsel Robert A. von Esch, IV, moves to be relieved as counsel of record for Defendant Miguel Mendez ("Client"). For the following reasons, the motion is GRANTED. "The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.)

Here, the court has reviewed the materials submitted by Moving Counsel and finds that counsel has complied with the requirements of California Rules of Court, Rule 3.1362.

Attorney von Esch shall be relieved as counsel of record for Defendant Miguel Mendez.

The Clerk is ordered to update the proposed order to reflect the following:

- Check the box in section 5(a); and
- In section 7, strike the outdated information.

This order shall become effective upon the filing of the proof of service of the signed order on Client.

Moving Counsel shall give notice of this ruling.

Motion 2. Motion to Be Relieved as Counsel of Record

Counsel Robert A. von Esch, IV, moves to be relieved as counsel of record for Defendant The M General Construction ("Client"). For the following reasons, the motion is GRANTED.

"The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.)

Here, the court has reviewed the materials submitted by Moving Counsel and finds that counsel has complied with the requirements of California Rules of Court, Rule 3.1362.

Attorney von Esch shall be relieved as counsel of record for Defendant The M General Construction.

Defendant The M General Construction is a corporate entity that cannot represent itself and must retain counsel to act on its behalf in court. (*See Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284 n.5; *Rogers v. Sonoma County Municipal Court* (1988) 197 Cal.App.3d 1314, 1318.)

While the ban on self-represented corporate entities does not prevent the court from granting the motion to withdraw, it will place pressure on The M General Construction to obtain new counsel or risk

		forfeiting important rights through non-representation, such as having its responsive pleading stricken and default entered. (*See Rogers v. Sonoma County Municipal Court, supra,* 197 Cal.App.3d at p. 1318; *Ferruzzo v. Superior Court* (1980) 104 Cal.App.3d 501, 504.) Defendant is ordered to obtain counsel and file evidence thereof with the court by September 30, 2026. The Clerk is ordered to update the proposed order to reflect the following: - Check the box in section 5(a); - In section 7, strike the outdated information; and - In section 13, add Defendant is ordered to obtain representation and file evidence thereof with the court by September 30, 2026. This order shall become effective upon the filing of the proof of service of the signed order on the Client. Moving Counsel shall give notice of this ruling.
6	Diyar Irvine, LLC vs. Elzoheiry	**TENTATIVE RULING:** **<u>Objections to Referee's Reports and Recommendations</u>** Cross-Defendant Toorak Capital Partners LLC (Toorak) objects in part to Report and Recommendation Nos. 212 and 213 issued by Discovery Referee, Judge Lina S. Marks (Ret.). For the following reasons, the objections are OVERRULED. On January 12, 2024, at an Order to Show Cause re Appointment of Discovery Referee, the Court appointed Honorable Gail Andler as a Discovery Referee. (ROA 515.) Judge Andler was not able to take this matter, so on February 9, 2024, the Court appointed Judge Linda Marks (Ret.) as Discovery Referee. (ROA 554.) The Report and Recommendation of the Referee is advisory. (Code Civ. Proc., § 644.) "The court has broad discretion to determine the best method for considering a party's challenges to the referee's findings, and the court is not required to hold a hearing or conduct a de novo analysis of the underlying arguments. [Citations.] In its review, the court should give the referee's findings ' "great weight" ' and focus on the parties' objections to those findings. [Citation.] We examine the trial court's decision to accept the referee's

		recommendation for an abuse of discretion. [Citation.]" (*Lopez v. Watchtower Bible & Tract Society of New York, Inc*. (2016) 246 Cal.App.4th 566, 589.) "Absent a contrary indication on the record, we are required to accept the court's statements and presume the court complied with its statutory duties." (*Id*. at p. 590; accord, *Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc*. (2020) 56 Cal.App.5th 771, 799.) " 'Although the scope of civil discovery is broad, it is not limitless.' [Citation.] Discovery devices must 'be used as tools to facilitate litigation rather than as weapons to wage litigation.' [Citation.] A party seeking to compel discovery must therefore 'set forth specific facts showing good cause justifying the discovery sought.' [Citations.] To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact." (*Digital Music News LLC v. Superior Court* (2014) 226 Cal.App.4th 216, 224, disapproved, on other grounds, as discussed in *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557, fn. 8 [disapproving line of cases, including *Digital Music*, to the extent they held a party seeking discovery of private information must always establish compelling interest or compelling need without regard to other considerations as stated in *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 34-35].) Report and Recommendation 212 (ROA 1948) concerns Toorak's motion for sanctions as to Plaintiffs Diyar Irvine, LLC ("Diyar"), Green City Development, LLC ("Green City"), Sadek El Sewedy and Ahmed El Sewedy (collectively "Plaintiffs") for alleged violation of Report and Recommendation Nos. 203 and 211 for failure to provide specific facts supporting Plaintiffs' Privilege Log. Toorak sought evidentiary sanctions that Plaintiffs be precluded from introducing any evidence regarding Rutan at trial or pretrial proceedings, including any attempt to rebut the presumption that Plaintiffs knew what their counsel knew. The Discovery Referee recommended that Toorak's motion be denied. By way of background, on August 21, 2024, Toorak moved to compel Plaintiffs to (1) produce documents listed on their July 2024 privilege log, and/or (2) provide another privilege log providing more factual information to establish the claims to privilege. (ROA 711.) The Discovery Referee granted that motion in part in Report & Recommendation No. 203, and the Court adopted that Report & Recommendation on October 30, 2025. (ROAs 1082, 1499.)

		Plaintiffs produced a supplemental privilege log on April 18, 2025, and a second supplemental privilege log on June 16, 2025. On July 21, 2025, Toorak moved to compel a further supplemental privilege log (ROA 1354) and also moved in the alternative for evidentiary sanctions (ROA 1364). The Discovery Referee filed Report & Recommendation Nos. 210 and 211 on November 19, 2025, granting in part Toorak's motion for a supplemental privilege log but denying Toorak's alternative request for a discovery sanction or compelling Plaintiffs to produce all Rutan emails. (ROA 1543, 1544.) Plaintiffs produced another supplemental privilege log on December 15, 2025. On January 16, 2026, Toorak filed two motions to compel: 1) a motion to preclude Plaintiffs from introducing certain evidence or compelling Plaintiffs to produce all Rutan emails, and 2) a motion for sanctions for violation of Report and Recommendation Nos. 203 and 211. . The Discovery Referee filed Report & Recommendation Nos. 212 and 213. (ROAs 1948 and 1949.) Report & Recommendation 212 concerned Toorak's motion for order for evidentiary sanctions precluding Plaintiffs from introducing certain evidence. The Discovery Referee reviewed Plaintiffs' operative privilege log containing almost 500 entries and Toorak's argument that Plaintiffs have consistently added no specific facts and instead repeat the same boilerplate. The Discovery Referee noted that the operative log provided the names and their capacities and agency relationships, whereas prior logs identified some people only broadly as "tax professionals" such they "could have been arms-length third parties whose inclusions rendered a communication non-confidential." (ROA 1948.) The Discovery Referee concluded that the current log clearly specifies that senders or recipients were agents of Plaintiffs or Rutan and provided more detail as to the subject matter of each communication. The Discovery Referee also reviewed and disagreed with Toorak's argument that Plaintiffs violated the prior Report & Recommendations by adding no specific facts as to how the communications reflect a legal opinion, noting that the log provided additional context for each communication and enabled assessment of whether a communication was confidential. The Discovery Referee disagreed with Toorak's arguments that Plaintiffs did not provide facts to explain how disclosure to a third party did not destroy the privilege and that Plaintiffs failed to explain how certain conduct like obtaining real estate records is privileged. The Discovery Referee "closely assessed each challenged entry listed

		in Toorak's Separate Statement" and addressed each of Toorak's challenges. Toorak objects to Report & Recommendation 212 in that the Discovery Referee found that Plaintiffs could claim privilege over communications with third parties including Kaz Investments Management, Shady Elzoheiry, and/or Vanessa Bastian. The Discovery Referee found that Plaintiffs complied with Report & Recommendation No. 211 by confirming that Shady Elzoheiry was Plaintiffs' agent during the period around September 5, 2016, and have confirmed the scope of Shady's agency relationship. Thus, the Discovery Referee found that Plaintiffs have shown that including Shady on the communications at issue was reasonably necessary for accomplishing a purpose of the lawyer's retention. Toorak challenges these findings for lack of evidence and contend that Plaintiffs' claim of agency are illogical. However, the Discovery Referee's Report & Recommendation on this issue is sufficiently supported by a reasoned factual and legal basis. Report and Recommendation 213 (ROA 1949) concerns Toorak's motion to preclude Plaintiffs from introducing any evidence at trial regarding Rutan or compelling Plaintiffs to produce all Rutan emails. The referee recommended denying Toorak's motion. Toorak first objects to the "Discovery Referee's conclusions in R&R 213 section II, in particular at footnote 3 (referring to and incorporating prior findings in R&R 210), section IV.2.i.b. including footnote 12, and section V.2) and 3)." (Objections at 4:9-11.) Toorak contends that the Discovery Referee erred in not finding that Plaintiffs had impliedly waived the attorney-client privilege in the withheld documents by putting squarely at issue in this lawsuit whether Sadek Elsewedy (and thus Rutan & Tucker) knew about Shady Elzoheiry's allegedly unauthorized activities. According to Toorak, Plaintiffs have expressly pleaded that Sadek knew nothing and was unable to discover any alleged fraud because of Elzoheiry's concealment. Thus, Toorak contends it is entitled to all withheld emails. The Court finds that the Discovery Referee thoroughly and correctly addressed Toorak's arguments regarding implied waiver and meaningfully discussed two relevant cases - *Solin v. O'Melveny & Myers, LLP* (2001) 89 Cal.App.4th 451 and *Chicago Title Ins. Co. v. Super. Ct*. (1985) 174 Cal.App.3d 1142 – in connection with those arguments.

		Toorak also argues that the Discovery Referee incorrectly found that Plaintiffs did not waive privilege by disclosing a significant part of communications. The Discovery Referee construed the term "the communication" to refer to each individual email, whereas Toorak contends that "the communication" should be construed to mean the entire email chain, taken together. (ROA 1949 at 16:11-20.) The Court finds the Discovery Referee's analysis to be well reasoned. Finally, Toorak contends that the Discovery Referee incorrectly found that any challenge to the documents listed in entries 1-80 of Plaintiffs' privilege log to be time-barred. However, the Discovery Referee noted that "Toorak's reply did not address the arguments that certain challenges are time-barred." The Court has reviewed Toorak's reply and confirmed the same. Toorak's objections are overruled. Toorak shall give notice of this ruling.
7	Irvine Westpark Plaza LLC vs. Diesel 1 LLC	**TENTATIVE RULING:** Counsel Constantine Panagotacos and James Higgins of Dunn & Panagotacos LLP move to be relieved as counsel for the following Defendants: Diesel 1 LLC, 100 Percent Health Management, LLC, Nigel Stobart, Kim Stobart, Brandon Livingood, and Rebecca Livingood. The court GRANTS each motion. The court finds that Moving Counsel has complied with the requirements of California Rules of Court, rule 3.1362, and has complied with the requirements of this court's 6/17/26 order continuing the instant motions. The court sets an order to show cause for October 27, 2026, at 9:00 a.m. in this department for Defendants 100 Percent Health Management, LLC and Diesel 1, LLC regarding their status as unrepresented entities. Within 15 days of receiving the signed Form MC-053 back from the court, Moving Counsel shall serve Defendants with the signed Form MC-053 and notice of this ruling, in the manner described in Rules of Court rule 3.1362(d).

		The order relieving counsel will be effective upon the filing of a proof of service of the executed order upon all parties. Moving Counsel shall give notice.
8	Medina vs. SACER Enterprises, LLC	**TENTATIVE RULING:** **<u>Motion to Consolidate</u>** Defendants Miguel Lopez Hernandez and Sacer Enterprises, LLC moves to consolidate this case with Hernandez v. Mathis Bros. Oklahoma LLC et al. (30-2023-01323474-CU-PA-NJC) for all purposes For the following reasons, the motion to consolidate the two matters is GRANTED. The two matters are consolidated for all purposes. This action (2022-01292548) shall be the lead action. **<u>Procedural Requirements for a Motion to Consolidate</u>** Rule 3.350(a) of the California Rules of Court sets forth the requirements for a motion to consolidate: (1) A notice of motion to consolidate must: (A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record; (B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and (C) Be filed in each case sought to be consolidated. (2) The motion to consolidate: (A) Is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest numbered case; (B) Must be served on all attorneys of record and all nonrepresented parties in all of the cases sought to be consolidated; and (C) Must have a proof of service filed as part of the motion. **<u>General Principles Re Consolidation of Cases</u>** When there are actions involving common questions of law or fact

		pending, a court may order a joint trial of any or all of the matters in issue in the actions or may order all the actions consolidated, or such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay. (Code Civ. Proc. § 1048(a).) The purpose of consolidation is to enhance trial court efficiency (i.e., to avoid unnecessary duplication of evidence and procedures); and to avoid the substantial danger of inconsistent adjudications (i.e., different results because tried before different juries, or a judge and jury, etc.). Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial, 12:340 (The Rutter Group 2012). There are two types of consolidation, a complete consolidation which results in a single action and a consolidation of separate actions for trial. (*Sanchez v. Superior Court* (1988) 203 Cal.App.3d 1391, 1396.) When cases are consolidated completely, which is usually ordered where the parties are identical and the causes could have been joined, the pleadings are considered merged, one set of findings is made, and one judgment is rendered. (Id.) When cases are consolidated for trial only, the pleadings, verdicts, findings and judgments are kept separate and the actions are simply tried together for the sake of convenience and judicial economy. (Id.) The granting or denial of the motion to consolidate rests in the sound discretion of the trial court, and will not be reversed except upon a clear showing of abuse of discretion. (*Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978–79.) Each case presents its own facts and circumstances, but the court will usually consider the following: (1) timeliness of the motion: i.e., whether granting consolidation would delay the trial of any of the cases involved, or whether discovery in one or more of the cases has proceeded without all parties present; (2) complexity: i.e., whether joining the actions involved would make the trial too confusing or complex for a jury; and (3) prejudice: i.e., whether consolidation would adversely affect the rights of any party. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial, 12:362.) **<u>Merits</u>** The parties in this action are represented by the same counsel as those in the related action. Because each of the defendants in the related action are defendants in this action or are represented by counsel in this action, because the actions arise from the same set of facts, and because the parties have stipulated to consolidation, the Court grants the motion.

		Moving Defendant shall give notice of this ruling.
9	Hernandez vs. Mathis Bros. Oklahoma LLC	**CMC**
10	Verganza Chavez vs. Savant Construction, Inc.	**TENTATIVE RULING:** **<u>Motion to Consolidate</u>** For the reasons set forth below, the unopposed Motion to Consolidate brought by Defendant Savant Construction, Inc. is GRANTED, pursuant to Code of Civil Procedure section 1048, subdivision (a). The instant action (*Verganza Chavez v. Savant Construction, Inc. et al.,* Case No. 2025-01481769) will be consolidated with *Palomar Specialty Insurance Company v. Savant Construction, Inc. et al.* (Case No. 2025-01491799), for all purposes. The instant action (Case No. 2025-01481769) will serve as the lead case. **<u>Procedural Requirements for a Motion to Consolidate</u>** Rule 3.350(a) of the California Rules of Court sets forth the requirements for a motion to consolidate: (1) A notice of motion to consolidate must: (A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record; (B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and (C) Be filed in each case sought to be consolidated. (2) The motion to consolidate: (A) Is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest numbered case; (B) Must be served on all attorneys of record and all nonrepresented parties in all of the cases sought to be consolidated; and (C) Must have a proof of service filed as part of the motion.

		General Principles Re Consolidation of Cases When there are actions involving common questions of law or fact pending, a court may order a joint trial of any or all of the matters in issue in the actions or may order all the actions consolidated, or such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay. (Code Civ. Proc. § 1048(a).) The purpose of consolidation is to enhance trial court efficiency (i.e., to avoid unnecessary duplication of evidence and procedures); and to avoid the substantial danger of inconsistent adjudications (i.e., different results because tried before different juries, or a judge and jury, etc.). Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial, 12:340 (The Rutter Group 2012). There are two types of consolidation, a complete consolidation which results in a single action and a consolidation of separate actions for trial. (*Sanchez v. Superior Court* (1988) 203 Cal.App.3d 1391, 1396.) When cases are consolidated completely, which is usually ordered where the parties are identical and the causes could have been joined, the pleadings are considered merged, one set of findings is made, and one judgment is rendered. (Id.) When cases are consolidated for trial only, the pleadings, verdicts, findings and judgments are kept separate and the actions are simply tried together for the sake of convenience and judicial economy. (Id.) The granting or denial of the motion to consolidate rests in the sound discretion of the trial court, and will not be reversed except upon a clear showing of abuse of discretion. (*Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978–79.) Each case presents its own facts and circumstances, but the court will usually consider the following: (1) timeliness of the motion: i.e., whether granting consolidation would delay the trial of any of the cases involved, or whether discovery in one or more of the cases has proceeded without all parties present; (2) complexity: i.e., whether joining the actions involved would make the trial too confusing or complex for a jury; and (3) prejudice: i.e., whether consolidation would adversely affect the rights of any party. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial, 12:362.) **Merits** A review of the actions proposed for consolidation confirms that each arises from the same injury sustained by Hector Rolando Verganza Chavez on June 24, 2023, such that there are clearly common questions of law and fact. In both cases, a determination will be made as to

		whether Defendants Savant Construction, Inc. and Central City Wrecking, Inc. are liable for the injuries sustained by Mr. Verganza Chavez. Given this central common question, consolidation serves the purpose of judicial efficiency. Defendant is ordered to comply with California Rules of Court, rule 3.350(c), which states: "An order granting or denying all or part of a motion to consolidate must be filed in each case sought to be consolidated." (Cal. Rules of Court, rule 3.350(c).) Thereafter "any subsequent document must be filed only in the lead case." (*Ibid.*) Defendant to give notice.
11	Young vs. Gunlei Corporation	**TENTATIVE RULING:** **<u>Motion to Vacate</u>** Plaintiffs and Cross-Defendants William and Jennifer Young move to vacate the Court's October 22, 2025, order entered in favor of Defendants and Cross-Complainants and striking JBY Enterprise, Inc. as an improper Cross-Defendant from the Cross-Complaint. For the following reasons, the motion is DENIED. Plaintiffs seek to vacate or modify the Court's minute order dated October 22, 2025. The October 22, 2025, order denied without prejudice Plaintiffs' motion for leave to amend and granted Defendants and Cross-Complainants Gunlei Corporation, Egreen Transport Corporation, Hong Chen, Jing (Amy) Song, Yu Wang (Monica), Wen Chen, and Elaine Huang' Motion to Strike Cross-Defendant JBY Enterprise, Inc.'s Answer to the Cross-Complaint. Plaintiffs do not challenge the portion of the October 22, 2025, order relating to Plaintiffs' motion for leave to amend. After all, they have subsequently been granted leave to amend and filed a Second Amended Complaint on April 23, 2026. (ROA 809.) Instead, Plaintiffs claim that JBY Enterprise, Inc. has assigned all of its contractual rights, obligations, and liabilities to Plaintiffs individually. Thus, Plaintiffs contend that "the October 22, 2025, Order should be vacated under Code of Civil Procedure §473(d), and JBY Enterprise, Inc. should be stricken as an improperly named Cross Defendant pursuant to § 436(a) and §389(b)." (ROA 759.) Code Civ. Proc. § 473(d) provides:

		> The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order. Plaintiffs have not shown that the October 22, 2025, contains clerical mistakes or is void in any way that justifies relief under Code Civ. Proc. § 473(d). The fact that Plaintiffs caused JBY Enterprise, Inc. ("JBY") to assign its assets and liabilities to Plaintiffs does not change the contract underlying the Cross-Complaint, which identifies JBY. (ROA 516.) Nor does it necessarily release JBY from its contractual obligations. Plaintiffs also cite to Code Civ. Proc. § 436(a), which provides that a Court may strike any irrelevant, false, or improper matter inserted in any pleading. Aside from the fact that Plaintiffs have not demonstrated compliance with the procedural requirements of a motion to strike (see, e.g., Code Civ. Proc. § 430.41 and CRC Rule 3.1322(a)), Plaintiffs have not established that JBY is an improper Cross-Defendant. Finally, Plaintiffs cite to Code Civ. Proc. § 389(b). Section 389 governs compulsory joinder of parties Section 389(b) provides: > (b) If a person as described in paragraph (1) or (2) of subdivision (a) cannot be made a party, the court shall determine whether in equity and good conscience the action should proceed among the parties before it, or should be dismissed without prejudice, the absent person being thus regarded as indispensable. The factors to be considered by the court include: (1) to what extent a judgment rendered in the person's absence might be prejudicial to him or those already parties; (2) the extent to which, by protective provisions in the judgment, by the shaping of relief, or other measures, the prejudice can be lessened or avoided; (3) whether a judgment rendered in the person's absence will be adequate; (4) whether the plaintiff or cross-complainant will have an adequate remedy if the action is dismissed for nonjoinder. (Code Civ. Proc. § 389(b).) Plaintiffs do not provide any reasoned argument as to how Section 389(b) is relevant to their motion.

		Plaintiffs and Cross-Defendants William and Jennifer Young shall give notice of this ruling.
12	Do vs. Pham	**TENTATIVE RULING:** For the reasons set forth below, Cross-Defendant Nguyen Nhu Nguyen's motion for summary judgment/adjudication is DENIED. **<u>Defective Proof of Service</u>** As a preliminary matter, Cross-Defendant Nguyen only filed a proof of service for the separate statement, which shows that it was served on 10/31/26. (See ROA 185). There is no proof of service for the motion, the memorandum of points and authorities, or the declaration of Mr. Nguyen. Nevertheless, Cross-Complainant Pham opposed the motion on the merits and did not raise this defect. Thus, the court will address the merits. **<u>Statement of Law</u>** "Summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact . . . ." (*Aguilar v. Atlantic Richfield Co*. (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.* at 851.) A defendant moving for summary judgment satisfies the initial burden by submitting undisputed evidence "showing that a cause of action has no merit [because] one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc. § 437c, subd. (p)(2); *Aguilar v. Atlantic Richfield Co., supra*, 25 Cal.4th at pp. 850-51.) However, "[t]he defendant *must* indeed present 'evidence'.""(*Aguilar, supra*, 25 Cal.4th at 855, italics original.) In addition, if a plaintiff has pleaded several theories, the defendant has the burden of demonstrating there are no material facts requiring trial on any of them. (*Carlsen v. Koivumaki* (2014) 227 Cal.App.4th 879, 889.) If a defendant fails to meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (*Binder v. Aetna Life Ins. Co*. (1999) 75 Cal.App.4th 832, 840; see also *Dix v.*

Live Nation Entertainment, Inc. (2020) 56 Cal.App.5th 590, 604 [where the evidence presented by defendant does not meet its burden, the motion must be denied without looking at the opposing evidence, if any, submitted by plaintiff.]).

If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (*Aguilar, supra*, 25 Cal.4th at p. 855; *Villacres v. ABM Industries, Inc*. (2010) 189 Cal.App.4th 562, 575.)

The nonmoving party must present substantial evidence in order to avoid summary judgment. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) "In some instances . . ., 'evidence may be so lacking in probative value that it fails to raise any triable issue.'" (*Whitmire v. Ingersoll-Rand Co*. (2010) 184 Cal.App.4th 1078, 1083-1084, *quoting Advanced Micro Devices, Inc. v. Great American Surplus Lines Ins. Co*. (1988) 199 Cal.App.3d 791, 795.) "'If the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial.'" (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 780, *quoting Leslie G. v. Perry & Associates* (1996) 43 Cal.App.4th 472, 482.)

In ruling on a motion for summary judgment, "the court must 'consider all of the evidence' and 'all' of the 'inferences' reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party." (*Aguilar, supra*, 25 Cal.4th at p. 843, citations omitted.) Courts "'construe the moving party's affidavits strictly, construe the opponent's affidavits liberally, and resolve doubts about the propriety of granting the motion in favor of the party opposing it.'" (*Unilab Corp. v. Angeles-IPA* (2016) 244 Cal.App.4th 622, 636, *quoting Seo v. All–Makes Overhead Doors* (2002) 97 Cal.App.4th 1193, 1201–1202.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment, and all evidentiary conflicts are to be resolved against the moving party. (*McCabe v. American Honda Motor Corp*. (2002) 100 Cal.App.4th 1111, 1119.) "The court . . . does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from the evidence, which raise a triable issue of material fact." (*Johnson v. United Cerebral Palsy, etc*. (2009) 173 Cal.App.4th 740, 754, citation omitted.) "[S]ummary judgment cannot be granted when the facts are susceptible [of] more than one reasonable inference . . ." (*Rosas v. BASF Corp*. (2015) 236 Cal.App.4th 1378, 1392.)

		<u>Pham's Cross-Complaint</u> "A summary judgment motion is directed to the issues framed by the pleadings". (*Canales v. Wells Fargo Bank, N.A.* (2018) 23 Cal.App.5th 1262, 1268). The court looks to the pleadings as "the outer measure of materiality" in a motion for summary judgment. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381.) Pham alleges the following in his Cross-Complaint: Cross-Defendant Nguyen Nhu Nguyen is a resident of Gardena who offered himself as the artificial spouse for profit to Plaintiff/Cross-Defendant Kim Lien Do. (CC, ¶ 4). Pham discovered Do was in an artificial marriage with Nguyen as part of plot to obtain citizenship for her, her children, and Cross-Defendant Quang. (CC, ¶ 4). Do and Nguyen were married in Vegas on 11/15/15. (CC, ¶ 10). In May of 2023, Pham was served with the Complaint by Do in this action. The Complaint filed by Do asserts three causes of action for partition of real property, money had and received, and promissory estoppel. According to the Complaint, Do and Pham are the owners of the subject real property commonly known as 13958 Anita Place, Garden Grove, CA 92843, and title to the Anita Place property is currently held as follows: "Kim Lien Thi Do, a single woman as to undivided 60 % interest and Paul B. Pham as to undivided 40% interest, as tenants in common". (CC, ¶ 27; Compl., ¶¶ 3, 4). Do alleges that she requested Pham pay $90,000.00, which accounts for Pham's 40% share of the total deposit of $225,000.00 toward the purchase price of the Property, and to date, Pham has refused to pay his portion of the deposit and has refused to cooperate with Plaintiff's desire to sell the Property. (Compl., ¶ 15). In the Cross-Complaint, Pham now seeks reformation of the deed. Pham alleges that Nguyen was legally married to Do at the time the deed was issued. (CC, ¶ 34). He alleges that he must join as defendants in the partition action all persons having or claiming interests of record or actually known to the plaintiff or who is reasonably apparent from an inspection of the property, in the property as to which a partition is sought, pursuant to Code Civ. Proc. § 872.510. (CC, ¶ 35). He alleges that Nguyen's acts, omissions, and marriage to Do render him an indispensable and necessary party for the partition and reformation actions. (CC, ¶ 37). Grounds exist for reformation of the deed which Plaintiff asserts for partition (Exhibit B) so that Do, Quang and Nguyen have no interest in the property. (CC, ¶ 39). The deed is allegedly false on its face as

		it states "Kim Lien Thi Do, a single woman" when she was married. (CC, ¶ 40). The only cause of action against Nguyen is the cause of action for reformation. Pham also asserts causes of action for breach of fiduciary duty against Cross-Defendant Do, aiding and abetting breach of fiduciary duty against Cross-Defendant Quang, fraud against Cross-Defendants Do and Quang, and unjust enrichment against Cross-Defendant Do. **<u>Reformation</u>** Civ. Code § 3399 states as follows: > When, through fraud or a mutual mistake of the parties, or a mistake of one party, which the other at the time knew or suspected, a written contract does not truly express the intention of the parties, it may be revised on the application of a party aggrieved, so as to express that intention, so far as it can be done without prejudice to rights acquired by third persons, in good faith and for value. Pham seeks reformation of the deed, and alleges that Nguyen has been named in this cause of action as a necessary and/or indispensable party because he is legally married to Do, and may have an interest pursuant to the laws governing community property. Code Civ. Proc. § 762.010 provides as follows: "The plaintiff shall name as defendants in the action the persons having adverse claims to the title of the plaintiff against which a determination is sought." In *Wilson v. Shea* (1924) 194 Cal.653, 658, the court held that "in actions for the reformation of agreements all persons whose interests in the subject-matter, legal or equitable, will be affected by the decree are necessary parties. If they do not appear as parties plaintiff they should then be joined as parties defendant." Nguyen contends that the reformation cause of action fails because Nguyen has no interest in the property, and provides the following in his separate statement of undisputed material facts (SSUMF): "I have never met PAUL B. PHAM in person". (SSUMF 1, Nguyen Decl., ¶ 2). "I have never spoken to PAUL B. PHAM by telephone, video call, or any other verbal medium." (SSUMF 2, Nguyen Decl., ¶ 2). "I have never corresponded with PAUL B. PHAM via email, text message, social media, or written letter." (SSUMF 3, Nguyen Decl., ¶ 2). "I never had any discussion or made any representations or

		promises to PAUL B. PHAM regarding the real property located at 13958 Anita Place, Garden Grove." (SSUMF 4, Nguyen Decl., ¶ 3). "I did not participate in any negotiations, discussions, or agreements involving PAUL B. PHAM regarding the purchase, financing, or maintenance of the Subject" property. (SSUMF 5, Nguyen Decl., ¶ 3). "I never received any funds from PAUL B. PHAM, including but not limited to any portion of the alleged $220,000 down payment or the $150,000 in alleged 'family support.'" (SSUMF 6, Nguyen Decl., ¶ 4). "I am not a party to the Grant Deed for the Subject Property." (SSUMF 7, Nguyen Decl., ¶ 4). "I hold no recorded legal or equitable interest in said property." (SSUMF 8, Nguyen Decl., ¶ 4). "To the extent I may have any interest in the Property by operation of law, I hereby disclaim any and all community property interest, or any other legal or equitable interest, in the Subject Property." (SSUMF 9, Nguyen Decl., ¶ 4). However, Pham's Cross-Complaint does not allege that Nguyen is on the deed. Rather, Pham contends that Nguyen is a necessary party to the reformation cause of action because he is married to Do, who is on the deed. Under such a theory, if the deed were reformed to exclude Do, Nguyen could be a proper party if it can be established that his interest is affected. Nguyen, as moving party, failed to establish <u>why</u> Pham's claim for reformation fails under such a theory. In Nguyen's three-page memorandum of points and authorities, Nguyen only cites to Civ. Code § 3399 in support of his argument that there can be no reformation claim as to him. But Civ. Code § 3399 does not provide that someone such as Nguyen, who is not a party to the deed, is an improper party in a reformation claim. To the contrary, Civ. Code §3399 applies to any "aggrieved party." Besides Civ. Code § 3399, and his general reference to Code Civ. Proc. § 437c and *Aguilar v. Atlantic Richfield Co*. (2001) 25 Cal.4th 826 for the standard on motion for summary judgment, Nguyen cites to no other law or authority in his moving papers. Under Cal. Rules of Court, Rule 3.1113(b), the memorandum of points and authorities "must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases and textbooks cited in support of the position advanced." (CRC 3.1113(b); *see Quantum Cooking Concepts, Inc. v. LV Assocs., Inc.* (2011) 197 Cal.App.4th 927, 934 [holding the trial court is not required to "comb the record and the law for factual and legal support that a party has failed to identify or provide"]; *see also Maral v. City of Live Oak* (2013) 221 Cal.App.4th 975, 984-985 [a court is "not required to examine undeveloped

claims, nor to make arguments for parties", it is to evaluate "legal argument with citation of authorities on the points made."]).

Nguyen argues that this cause of action fails because he is not on the deed, has had no communications with Pham, and never received funds from Pham. But Nguyen does not make any argument or cite to any authority challenging Pham's allegation that Nguyen's marriage to Do makes Nguyen a proper party to the reformation cause of action.

Nguyen also argues that he has now provided a declaration disclaiming his interest in the property. In support of the instant motion, Nguyen provided a declaration declaring as follows: "To the extent I may have any interest in the Property by operation of law, I hereby disclaim any and all community property interest, or any other legal or equitable interest, in the Subject Property." (Nguyen Decl., ¶ 4).

However, Nguyen does not ask this court for a judgment stating that he has no interest in the property. Rather, he asks this court to find judgment in his favor and against Pham on the cause of action for reformation. (See Motion, pg. 1).

Pham cites to *In re Brace* (2020) 9 Cal. 5th 903, 927, where the court held: "Family Code section 760 [community property statute] does not permit the community property presumption to be rebutted simply by the manner in which a married couple takes title." In response, and for the first time in his Reply, Nguyen argues that the community property presumption cannot apply because Pham's own statements establish that Nguyen and Do were not "cohabitating." However, Nguyen may not raise an entirely new theory for the first time on Reply, particularly where Pham specifically alleged in his Cross-Complaint that Nguyen is a necessary party for the partition action because of the community property presumption under Fam. Code § 760. (CC, ¶ 8). As the moving party, Nguyen was required to address and develop this theory in his moving papers, and failed to do so. (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1538 ["[p]oints raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument."]).

Pursuant to the foregoing, the court finds that Nguyen failed to meet his initial burden.

		<u>Objections</u> Cross-Defendant Nguyen asserts objections to the declaration of Paul Pham and the declaration of Dale Washington. The court declines to rule on these objections pursuant to Code Civ. Proc. § 437c, subd. (q), as Cross-Defendant Nguyen failed to meet his initial burden. Cross-Complainant Paul Pham shall give notice.
13	Gillespie vs. Ford Motor Company	**TENTATIVE RULING:** For the reasons set forth below, the unopposed Motion for Summary Judgment brought by Defendants Ford Motor Company and Ken Grody Ford is GRANTED. **<u>Requests for Adjudication</u>** The Motion identifies *nine* issues for adjudication; however, multiple issues are associated with the same causes of action. Pursuant to Code of Civil Procedure section 437c, subdivision (f)(1), a party may seek summary adjudication as "to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty…" (Code Civ. Proc., § 437c, subd. (f)(1).) Additionally, "[i]f summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated verbatim, in the separate statement of undisputed material facts." (Cal. Rules of Court rule 3.1350(b).) As the Notice of Motion does not identify any specific affirmative defense, claim for damages or issues of duty and, instead, only references the causes of action, the court interprets the Notice as seeking adjudication of each cause of action. Applying the above herein, the Court will rule on each of the six causes of action and need not rule on duplicative issues, asserting the same claims fail for different reasons. **<u>First Cause of Action: Violation of Civil Code §1793.2(d):</u>** Pursuant to Civil Code section 1793.2, subdivision (d), a manufacturer who is "unable to service or repair a new motor vehicle…to conform

to the applicable express warranties after a reasonable number of attempts…shall either promptly replace the new motor vehicle…or promptly make restitution to the buyer…" (Civ. Code, § 1793.2, subd. (d)(2.)

"Any buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter or under an implied or express warranty or service contract may bring an action for the recovery of damages and other legal and equitable relief." (Civ. Code, § 1794, subd. (a).)

As explained in *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, "[t]he statute requires the manufacturer to afford the specified remedies of restitution or replacement if that manufacturer is unable to repair the vehicle 'after a reasonable number of *attempts.*'" (*Id.* at p. 1208.) "'Attempts' is plural. The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle." (*Ibid.*)

"A single attempt does not meet the statutory threshold, so that there is no need for a trier of fact to determine its reasonableness." (*Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1209.)

Here, the undisputed evidence indicates Defendant was provided only one opportunity to repair any alleged defect.

Initially, the First Amended Complaint identifies only one repair attempt on January 18, 2021. (¶43 of FAC.) Per the Complaint, on that day, Plaintiff "presented the Subject Vehicle to Defendant's authorized repair facility for complaints regarding the transmission, including, inter alia, that the Vehicle would not go past third gear, slipp[ed] in gear, delayed engagement into gear" and experienced "hard shifts" and "clanking." (*Ibid.*)

Consistent with the above allegation, Defense Counsel declares that only a single repair order was produced by Plaintiff in this action. (¶5 of Marrett Declaration and Exhibit 4 thereto.) This repair order is dated January 18, 2021, and indicates Plaintiff reported the following: "Intermittent the wrench warning light came won't go past 3rd gear slipping delayed engagement condition, shifting hard and clanking condition felt, 2-3 flare ups and 3-4 and upshifts are late slipping condition CK and advise 3636." (*Id.* [capitalization altered from original].)

Per Plaintiff, other than the above and "maybe another one for an oil change and…door adjustment" he did not recall bringing his vehicle

		to a dealership for repairs. (¶9 of Marret Declaration and Exhibit 8 thereto [see pg. 271 of ROA No. 114].) The Complaint does not allege a defect with the door; however, even assuming the referenced "door adjustment" constitutes an attempt to repair a defect, the above testimony indicates only one visit occurred, for this purpose. Thereafter, the Complaint alleges Defendant failed to repair the identified transmission complaints, "despite a reasonable number of repair opportunities" (¶43-¶44 of FAC); however, (although not cited by Defendant), Plaintiff testified that the transmission performs fine right now, stating: "Yes. As far as I can tell, it's okay. I noticed some time it got a little lag in it – it's – it's all right." (¶9 of Marret Declaration and Exhibit 8 thereto [see pg. 274 of ROA No. 114].) Based on the above, the undisputed evidence proves that Defendant was provided only one opportunity to perform repairs, which is insufficient to support a claim pursuant to Civil Code section 1793.2, subdivision (d). Moreover, the undisputed evidence suggests that transmission issues *were* repaired. For the above reasons, Defendant's request for summary adjudication on the First Cause of Action id GRANTED. **Second Cause of Action: Violation of Civil Code §1793.2(b)** Civil Code section 1793.2, subdivision (b) states that "the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days." (Civ. Code, § 1793.2, subd. (b).) Within the Second Cause of Action, Plaintiff alleges Defendant failed to "service or repair the Vehicle so as to conform to the applicable warranties within 30 days," as required by the above provision. (¶66 of FAC.) However, as referenced above, the undisputed evidence indicates the single repair attempt in January of 2021, lasted less than 30-days. Per the Repair Order produced by Plaintiff, the vehicle was delivered to Ken Grody Ford on January 18, 2021, and returned on January 26, 2021. (¶5 of Marrett Declaration and Exhibit 4 thereto.) Plaintiff does not dispute the contents of this Repair Order or otherwise object thereto.

		Additionally, Plaintiff testified that the truck was at Ken Grody Ford "for six or seven days." (¶9 of Marret Declaration and Exhibit 8 thereto [see pg. 269 of ROA No. 114].) Further, the undisputed evidence indicates the vehicle was never presented for additional repairs to the transmission and the transmission now operates "all right." (See ¶9 of Marret Declaration and Exhibit 8 thereto [pgs. 271 and 274 of ROA No. 114].) Based on the above, the undisputed evidence proves Defendant did not violate Civil Code section 1793.2, subdivision (b). For the above reasons, Defendant's request for summary adjudication on the Second Cause of Action is GRANTED. **Third Cause of Action: Violation of Civil Code §1793.2(a)(3):** Civil Code section 1793.2, subdivision (a)(3) requires manufacturers "[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period." (Civ. Code, § 1793.2, subd. (a)(3).) In violation of the above, Plaintiff alleges "Defendant FMC failed to make available to its authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period." (¶71 of FAC.) In seeking adjudication of this claim, Defendant cites federal authority which addresses the *pleading* standard for claims arising from Civil Code section 1793.2, subdivision (a)(3). The offered citation *suggests* Defendant is challenging only the sufficiency of the allegations; however, Defendant nonetheless asserts "Ken Grody had sufficient literature available between January 21, 2021, and January 26, 2021, to diagnose the F-150 and complete the repairs." (See SSUF No. 14 [ROA No. 111].) Consequently, Defendant *is* seeking to challenge the sufficiency of the underlying evidence. In support of the above statement, Defendant offers the January 18, 2021, Repair Order and the above discussed testimony from Plaintiff, which indicates the vehicle was delivered for transmission repairs only once. (See SSUF No. 14 [ROA No. 111], citing ¶5 and ¶9 of Marrett Declaration and Exhibits 4 and 8 thereto.)

		As indicated above, Defense Counsel declares that only a single repair order was produced by Plaintiff in this action. (¶5 of Marrett Declaration and Exhibit 4 thereto.) Similarly, Plaintiff's testimony indicates that only one transmission repair attempt was made. (¶9 of Marret Declaration and Exhibit 8 thereto [see pg. 271 of ROA No. 114].) Further, Plaintiff testified that the transmission performs fine right now, stating: "Yes. As far as I can tell, it's okay. I noticed some time it got a little lag in it – it's – it's all right." (¶9 of Marret Declaration and Exhibit 8 thereto [see pg. 274 of ROA No. 114].) The undisputed evidence proves the vehicle was repaired and, necessarily, sufficient service literature and replacement parts were provided, where the repair was completed. For the above reasons, Defendant's request for summary adjudication on the Third Cause of Action is GRANTED. **Fourth Cause of Action: Implied Warranty** **1. Statute of Limitations** The implied warranty of merchantability has a maximum duration of one-year. (Civ. Code, § 1791.1, subd. (c).) Additionally, "[t]he statute of limitations for breaches of the implied warranty of merchantability is four years." (*Montoya v. Ford Motor Co.* (2020) 46 Cal.App.5th 493, 494.) "California courts have held that the statute of limitations for an action for breach of warranty under the Song-Beverly Act is governed by the same statute that governs statute of limitations for warranties arising under the Uniform Commercial Code: section 2725 of the Uniform Commercial Code." (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1305-1306, citing *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 215.) Per Commercial Code section 2725, "[a] breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered." (Com. Code, § 2725, subd. (2).) Citing non-binding federal authorities, Defendant asserts this claim accrued upon tender of delivery. (See Motion: 16:10-12 (citing *Yetter v. Ford Motor Co.* (N.D. Cal. 2019) 438 F.Supp.3d 210, 221 and *Ferris v. Ford Motor Co.* (N.D. Cal. 2019) 2019 WL 1100376 at 3.)

		However, the Court in *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297 expressly analyzed a claim brought pursuant to the Song-Beverly Act and held "[t]he implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale." (*Id.* at p. 1304.) "In the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery." (*Id.* at p. 1305.) "Thus, although a defect may not be discovered for months or years after a sale, merchantability is evaluated as if the defect were known." (*Ibid.*) "[B]y giving the implied warranty a limited prospective existence beyond the time of delivery, the Legislature created the possibility that the implied warranty could be breached after delivery." (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1309.) "As discussed above, this is a change from the Uniform Commercial Code, under which the implied warranty could be breached only at the time of delivery." (*Ibid.*) In sum, the *Mexia* Court concluded: "In light of the plain language of the duration provision, and the policy considerations at play in construing a provision of the Song-Beverly Act, we interpret the duration provision as providing the implied warranties under the Song-Beverly Act with a limited prospective existence beyond the date of delivery." (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1311.) Based on the above, delayed discovery *may* apply to Plaintiff's Fourth Cause of Action; however, Plaintiff has not submitted any evidence which supports its application herein. Where a statute of limitations defense is raised, a moving defendant bears the initial burden to demonstrate the claim is barred. (*Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1197.) Once that burden is met, the burden shifts to plaintiff "to demonstrate his claims survive based on one or more nonstatutory exceptions to the basic limitations period." (*Ibid.*; See also *Glue-Fold, Inc. v. Slautterback Corp.* (2000) 82 Cal.App.4th 1018, 1030 and *Acosta v. Glenfed Development Corp.* (2005) 128 Cal.App.4th 1278, 1292-1293.) "That plaintiffs may have anticipated defendants' reliance on a limitations defense by alleging facts supporting a statutory exception to that defense is not sufficient to justify shifting the burden that

		otherwise would be imposed on plaintiffs." (*Acosta v. Glenfed Development Corp.* (2005) 128 Cal.App.4th 1278, 1293.) Here, it is undisputed that Plaintiff purchased his vehicle on May 5, 2018. (See ¶27 of FAC; See also ¶2 of Marrett Declaration and Exhibit 1 thereto [Retail Installment Sale Contract dated May 5, 2018].) Absent application of a statutory exception, such as delayed discovery or tolling, the relevant statute of limitation ran on May 5, 2022; however, this action was not initiated until October 5, 2023. (See ROA No. 2.) Based on the above, Defendant established that Plaintiff's Fourth Cause of Action is barred by the statute of limitations. While Plaintiff alleged *multiple* exceptions to the limitations period (See ¶12-¶26 of FAC), Plaintiff did not oppose this motion or otherwise establish a triable issue regarding the above, via admissible evidence. (See *Aryeh v. Cannon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1197.) While it is undisputed that Plaintiff's sole presentation of the vehicle for repairs occurred in January of 2021 (see discussion above), there has been no additional evidence offered which indicates this was the earliest Plaintiff could discover the defect. In order to rely on delayed discovery, Plaintiff was required to show "(1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence." (*Fox v. Ethicon Endo-Surery, Inc.* (2005) 35 Cal.4th 797, 808.) For the above reasons, the court finds that the Fourth Cause of Action is barred by the applicable statute of limitations and the court grants summary adjudication on that basis. **<u>Fifth Cause of Action: Fraud:</u>** "[T]he elements of an action for fraud and deceit based on a concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage."

		(*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248 [emphasis added].) As noted by Defendant, "[t]he very existence of a warranty presupposes that some defects may occur." (*Santana v. FCA US, LLC* (2020) 56 Cal.App.5th 334, 345.) Thus, to show concealment, Plaintiff must establish Defendant was aware of a defect and either unwilling or unable to fix it. (*Id.* at pp. 345-346.) In addition to the above, "[t]he complaint limits the issues to be addressed at the motion for summary judgment." (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258.) "A moving party seeking summary judgment or adjudication is not required to go beyond the allegations of the pleading…." (*Johnson v. The Raytheon Co., Inc.* (2019) 33 Cal.App.5th 617, 636.) Here, in alleging concealment, Plaintiff asserts that "at no point prior to purchase was Plaintiff advised the Vehicle and its 10-Speed automatic transmission were defective." (¶80 of FAC.) All allegations asserting Defendant Ford had knowledge of a defect, specifically reference a 10-Speed transmission. (See ¶45, ¶47-¶55 and ¶84 of FAC.) Per the Complaint, "[p]rior to Plaintiff purchasing the Vehicle, Defendant FMC knew that vehicles equipped with the same 10-speed transmission as the Vehicle suffered from one or more defects that can cause the vehicles and their 10-speed transmission to experience hesitation and/or delayed acceleration; harsh and/or hard shifting; jerking, shuddering, and/or juddering ('Transmission Defect')." (¶45 of FAC; See also ¶84 of FAC.) To support the existence of knowledge, the Complaint identifies multiple Technical Service Bulletins ("TSBs"), relating specifically to a "10R80 Automatic Transmission." (¶47-¶55 of FAC.) Plaintiff cites the same TSBs and 10-Speed Transmission in response to discovery, when asked to describe the information supporting his allegation of knowledge. (¶8 of Marrett Declaration and Exhibit 7 thereto, at SROG No. 65.) In contrast to the allegations in the Complaint, however, the undisputed evidence indicates Plaintiff's vehicle is equipped with a 6-Speed transmission. (See SSUF No. 27 and ¶9 of Marret Declaration and Exhibit 8 thereto [see pg. 268 of ROA No. 114].) Additionally, the undisputed evidence indicates only a single repair was performed and Plaintiff's transmission is now performing fine.

		(See ¶5 of Marrett Declaration and Exhibit 4 thereto; See also ¶9 of Marret Declaration and Exhibit 8 thereto [see pgs. 271 and 274 of ROA No. 114].) The undisputed evidence indicates that, to the extent a defect exists in Ford's 10-Speed transmission, any concealment of this fact was immaterial to Plaintiff and his 6-Speed vehicle. For the above reasons, Defendant's request for summary adjudication on the Fifth Cause of Action is GRANTED. **<u>Sixth Cause of Action: Negligent Repair</u>** Defendant Ken Grody seeks summary adjudication of the Sixth Cause of Action, solely on the basis the claim is barred by the economic loss rule. "The economic loss rule requires a purchaser to recover in contract for purely economic loss due to disappointed expectations, unless he can demonstrate harm above and beyond a broken contractual promise." (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988.) However, no contract is identified, as between Defendant Ken Grody and Plaintiff. Relying on the allegation the "causes of action arise out of the warranty obligations" (See ¶31 of FAC), Defendant asserts the claim arises from the *warranty* contract; however, the warranty contract is alleged to have been entered into, solely between Plaintiff and Defendant FMC. (¶27 of FAC.) Additionally, regardless of the general allegation stated above, the claim for Negligent Repair makes no reference to the warranty. Instead, Plaintiff alleges he "delivered the Subject Vehicle to Defendant KEN for substantial repair," "Defendant KEN owed a duty to Plaintiff to use ordinary care and skill in storage, preparation and repair of the Subject Vehicle," and this duty was breached. (¶97-¶99 of FAC.) As explained by the California Supreme Court in *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, tort claims "are barred when they arise from – or are not independent of – the parties' underlying contracts." (*Id.* at p. 924.) Absent a contract between Plaintiff and Defendant Ken Grody, this argument fails.

		Although not explicitly stated or argued, Defendant *appears* to suggest the Repair Order produced by Plaintiff in discovery constitutes a contract. (See ¶5 of Marrett Declaration and Exhibit 4 thereto); however, authority indicates that *service* contracts are not subject to the economic loss doctrine. As explained by the Court in *North American Chemical Co. v. Superior Court* (1997) 59 Cal.App.4th 764 (*North American*), "in actions arising from the sale or purchase of a defective product, plaintiffs seeking economic losses must be able to demonstrate that either physical damage to property (other than the defective product itself) or personal injury accompanied such losses; if they cannot, then they would be precluded from any tort recovery in strict liability or negligence." (*Id.* at p. 780.) "However, such authorities would seem to have little or no application when the commercial relationship of the parties does not involve the sale of goods or products, nor the rules developed under the law merchant and the Uniform Commercial code, but rather relates only to the performance of services." (*Id.* at pp. 780-781.) "Thus, in circumstances such as those presented by this case, the policy concerns underlying the limitations on recovery of economic losses articulated by the *Seely* court and its progeny are not present." (*Id.* at p. 781.) "[B]ecause this case arises from a contract for the performance of services rather than the sale of goods, and the negligent performance of that contract allegedly resulted in *foreseeable* economic loss to North American, the so-called 'economic loss rule' does not bar recovery even though (1) the only damages that North American seeks are based solely on economic loss and (2) contractual privity is present." (*Id.* at p. 770.) While Defendant suggests that *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905 (*Sheen)* overruled *North American Chemical,* no references to this decision are included within *Sheen.* Nor does *Sheen* find the contractual economic loss rule broadly applies against service contracts. Instead, the *Sheen* Court acknowledged the "recognized exception to the economic loss rule for consumers who contract for certain kinds of professional services." (*Sheen, supra,* 12 Cal.5th at p. 933.) "[I]n that context…a cause of action for negligence ensures that the consumer receives the services the professional agreed to provide. In such settings, professionals generally agree to provide 'careful efforts' in rendering contracted-for services, but 'most clients do not know enough to protect themselves by inspecting the professional's work or by other independent means.' " (*Ibid.*) "Given this disparity, a claim

		for professional negligence can serve the important purpose of ensuring that professionals render the 'careful efforts' they have contracted to provide." (*Ibid.*) Defendant draws attention to language within *Sheen* which discusses the *Biakanja* factors; however, this language addresses the element of *duty*. In *Sheen* the Court concluded it could not "rely on *Biakanja* to impose a tort duty on a contracting party to avoid negligently causing monetary harm to another party to that contract." (*Sheen, supra,* 12 Cal.5th at p. 938.) "[T]he *Biakanja* factors are not applicable when, as here, the litigants are in contractual privity and the plaintiff's claim is not 'independent of the contract arising from principles of tort law.'" (*Id.* at p. 942.) The Court in *Sheen* ultimately held that "a lender owes no tort duty sounding in general negligence principles to 'process, review and respond carefully and completely to' the borrower's application." (*Id.* at 948.) The above holding is *not* contrary to the holding in *North American Chemical,* as the Court in *North American Chemical* was not relying on the *Biakanja* factors to establish the existence of a *duty.* Instead, the Court in *North American Chemical* explained: "[F]or over fifty years California has also recognized the fundamental principle that '[a]ccompanying every contract is a common-law duty to perform with care, skill, reasonable expedience, and faithfulness the thing agreed to be done, and a negligent failure to observe any of these conditions is a tort, as well as a breach of contract.'" (*North American Chemical Co. v. Superior Court* (1997) 59 Cal.App.4th 764, 774.) "A contract for the performance of services, as we have already discussed, necessarily carries with it both the reasonable expectation and implied at law promise that it will be performed with reasonable care." (*Id.* at p. 785 [emphasis added].) Having found the existence of a duty sufficient to support a negligence claim, the Court in *North American Chemical* proceeded, in a separate portion of the opinion, to hold that the economic loss rule did *not* apply to service contracts, where the economic loss was foreseeable (a *Biakanja* factor.) (*Id.* at p. 770.) As the Court in *North American Chemical* did not rely on the *Biakanja* factors to establish the existence of a duty, it is not inconsistent with *Sheen.* Based on the above, looking solely at the argument presented in the motion, the court might deny summary adjudication of the Sixth Cause of Action; however, as indicated above, the undisputed evidence (cited in connection with *other* claims) indicates Defendant Ken Grody was not negligent.

		"The elements of a negligence cause of action are duty, breach, causation, and damages." (*Coyle v. Historic Mission Inn Corporation* (2018) 24 Cal.App.5th 627, 634.) Additionally, there exists a "common-law duty to perform with care, skill, reasonable expedience, and faithfulness the thing agreed to be done…." (*Stonegate Homeowners Assn. v. Staben* (2006) 144 Cal.App.4th 740, 748.) The undisputed evidence indicates that only a single repair was performed. (See ¶5 of Marrett Declaration and Exhibit 4 thereto; See also ¶9 of Marret Declaration and Exhibit 8 thereto [see pg. 271 of ROA No. 114].) Per Plaintiff, he did not bring his vehicle back to *any* Ford dealerships, for any other repairs. (*Ibid.*) Finally, Plaintiff indicates his transmission is now performing fine. (¶9 of Marret Declaration and Exhibit 8 thereto [see pg. 274 of ROA No. 114]; See, generally, SSUF Nos. 2, 5, 14, 28 and 29.) Based on the above, the undisputed evidence indicates Defendant Ken Grody did not breach any duty to Plaintiff. Of note, while Defendant offered only one legal argument directed towards the Sixth Cause of Action, "[t]he motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).) Here, reviewing all the offered evidence indicates there are no triable issues, as to the Sixth Cause of Action. For the above reasons, Defendant's request for summary adjudication on the Sixth Cause of Action is GRANTED. Moving party to give notice.
14	Palomar Specialty Insurance Company vs. Savant Construction, Inc.	**CMC**
15	Governing Board of the Los Alamitos Unified School District vs.	**TENTATIVE RULING:** Petitioner Governing Board of the Los Alamitos Unified School District ("LAUSD") has moved under Code Civ. Proc. § 1094.5(g)

	Commission on Professional Competence by and through the Office of Administrative Hearings of the State of California	and (h) for an order to maintain the status quo pending a final decision on this writ of mandate. For the reasons set forth below, the request for a stay is DENIED. **<u>Legal Standard for Stay</u>** CCP § 1094.5(g) provides: Except as provided in subdivision (h), the court in which proceedings under this section are instituted may stay the operation of the administrative order or decision pending the judgment of the court, or until the filing of a notice of appeal from the judgment or until the expiration of the time for filing the notice, whichever occurs first. However, <u>no such stay shall be imposed or continued if the court is satisfied that it is against the public interest.</u> CCP § 1094.5(h)(1) states: The court in which proceedings under this section are instituted may stay the operation of the administrative order or decision of any licensed hospital or any state agency made after a hearing required by statute to be conducted under the Administrative Procedure Act, as set forth in Chapter 5 (commencing with Section 11500) of Part 1 of Division 3 of Title 2 of the Government Code, conducted by the agency itself or an administrative law judge on the staff of the Office of Administrative Hearings pending the judgment of the court, or until the filing of a notice of appeal from the judgment or until the expiration of the time for filing the notice, whichever occurs first. <u>However, the stay shall not be imposed or continued unless the court is satisfied that the public interest will not suffer and that the licensed hospital or agency is unlikely to prevail ultimately on the merits.</u> The application for the stay shall be accompanied by proof of service of a copy of the application on the respondent. Service shall be made in the manner provided by Title 4.5 (commencing with Section 405) of Part 2 or Chapter 5 (commencing with Section 1010) of Title 14 of Part 2. This statute "unequivocally requires the superior court weigh the public interest in each individual case." (*Sterling v. Santa Monica Rent Control Bd.* (1985) 168 Cal.App.3d 176, 187; see also *Am. Indian Model Schs. v. Oakland Unified Sch. Dist.* (2014) 227 Cal.App.4th 258, 295 ("The court is required to weigh "the public interest when

		considering whether to grant the request for a preliminary injunction.”)). **<u>Relevant Facts and the Parties’ Positions</u>** Petitioner contends that on August 5, 2025, Petitioner adopted a statement of charges against Real Party in Interest David Moellenkamp to immediately suspend without pay and dismiss Real Party in Interest from his employment on the basis of immoral conduct, unprofessional conduct, and dishonesty, among other reasons. An administrative hearing was conducted before Respondent, and Respondent issued a decision on May 22, 2026, overturning the District’s proposed immediate suspension without pay and dismissal. Petitioner argues that a stay is necessary because Real Party-in-Interest was charged with immoral conduct. To the extent that the decision is reversed, protecting staff and students from such conduct would be in the public interest. Further, Petitioner argues that a stay would avoid significant disruption to the district’s operations because Moellenkamp’s reinstatement would require the District to find an open position or displace another employee at the very beginning of the 2026-2027 school year, interrupting the educational program and potentially impacting other employees’ rights. The specific positions (i.e. his assignment, work location, classroom, etc.) from which Moellenkamp was suspended have been filled with other permanent employees who have ongoing rights to retain those positions. (See Declaration of Dr. Ryan Weiss-Wright In Support of Request to Stay Decision ([“Weiss-Wright Decl.”], ¶ 4, attached as Exhibit 3.) If the decision were reversed, then the District would be disrupted in having a new position to fill. Further, Petitioner argues that in Education Code section 44944, subsection (f), the legislature intended to stay the payment of fees if an appeal to a decision is made. Real Party-in-Interest argues that Petitioner cannot meet the standard to grant a stay under section 1094.5. The statute provides that the court must deny the stay unless “the court is satisfied that the public interest will not suffer and that the licensed hospital or agency is unlikely to prevail ultimately on the merits” (CCP § 1094.5(h)(1)). Moellenkamp argues that the District has failed to establish that the public interest will not suffer and/or that Petitioner is likely to prevail on the merits. Specifically, Moellenkamp argues that the administrative scheme intended for immediate payment of his salary under Education Code §

		44946, that unpaid suspension is reversed upon the CPC having actually conducted a hearing on the merits and issuing a decision in favor of the teacher, as it did here, and the teacher must be reinstated and paid full back salary within five days of the CPC's decision. Further, Moellenkamp argues that he would be prejudiced such that staying the CPC decision would be against the public interest. (*See Bostean v. Los Angeles Unified School Dist.* (1998) 63 Cal.App.4th 95, 110 (Education Code statutory scheme requires procedural due process before a permanent employee may be deprived of their property interest in their employment) The Legislature's scheme reflects a desire that public employees who are ordered reinstated to their jobs "should not ordinarily be left without employment and backpay for several years" pending appeals by the public agency. (*Lomeli v. Department of Corrections (2003) 108 Cal.App.4th 788, 798.)* As a result of the District's continued refusal to reinstate Moellenkamp, he has sustained, and will continue to sustain, lost wages, lost pension contributions and service credits, lost sick and other leave accruals, and lost salary step increases. Finally, Moellenkamp argues that Petitioner has not established by admissible evidence that Petitioner is likely to prevail on the merits of this writ. **<u>The Court's Analysis</u>** The court finds that Petitioner has not met the legal standard to satisfy CCP § 1094.5 (g) or (h)(1) for a stay. First, Petitioner has not established that a stay would benefit the public interest. Petitioner offers speculative hypotheticals as to Petitioner's harm. While Moellenkamp's position may have been filled, there is no showing that Petitioner is unable to comply with the Respondent's decision. Further, Petitioner's argument that other employees will have a difficult time with Real Party-in-Interest is not supported by any admissible evidence. The declaration of Dr. Ryan Weiss-Wright only mentions the difficulty of back-pay, but does not mention any conflicts with current employees. Instead, the court finds that the harm to Real Party-in-Interest is more prevalent with real wages, service hours, and salary step considerations that will be affected. Further, Petitioner relies on Education Code section 44944, subsection (f), which provides the following, in part. • "(4) If either the governing board of the school district or the employee petitions a court of competent jurisdiction for review

		of the decision of the Commission on Professional Competence, the payment of expenses to members of the commission required by this subdivision shall not be stayed." (Ed. Code, § 44944(f)(2)). • "(5) If the decision of the Commission on Professional Competence is reversed or vacated by a court of competent jurisdiction, either the state, having paid the commission members' expenses, shall be entitled to reimbursement from the governing board of the school district for those expenses, or the governing board of the school district, having paid the expenses, shall be entitled to reimbursement from the state. If either the governing board of the school district or the employee petitions a court of competent jurisdiction for review of the decision to overturn the administrative law judge's decision, ***the payment of the <u>expenses of the hearing</u>, including the cost of the administrative law judge required by this paragraph, shall be stayed until no further appeal is sought, or all appeals are exhausted." (***Ed. Code, § 44944(f)(5). Under Petitioner's authority, therefore, the legislature intended to stay the expenses of the administrative hearing—not stay the payment of back-pay and withhold the salary of a reinstated employee. The court finds the legislative intent of Real Party-in-Interest's authority more persuasive. Under Education Code § 44946, "[i]f the employee has been suspended pending the hearing, he shall be reinstated within ***five days*** after the governing board's decision in his favor, and ***shall be paid full salary*** by the governing board for the period of his suspension." That the Legislature requires reinstatement and back pay within only five days establishes the Legislature's intent to make an employee whole and reinstate an employee's rights as soon as possible. The public interest, therefore, favors an employee who has been withheld pay during suspension, be made whole if the suspension decision is overturned. Further, the court finds that Petitioner has not established by admissible evidence that Petitioner is likely to prevail on the merits. Petitioner's papers for the request to stay makes several arguments about the evidence that Respondent did or did not consider and allow. At this stage, without more, the arguments are pure speculation as to how the proceeding would have resulted if certain evidence was excluded/included.

		For these reasons, the request for a stay is DENIED. Respondent to give notice.
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